

Terms of Service

Effective: June 5, 2026 designflare.de

These Terms of Service ("Terms") govern your access to and use of <https://designflare.de>, products, and services offered by DesignFlare ("we", "us", "our"), operated by Ayoub Esadik. By accessing our website, submitting an order, or completing a purchase, you agree to be bound by these Terms.

1. About DesignFlare

DesignFlare is an independent digital studio specializing in production-ready coded website templates, UI kits, and related digital assets. DesignFlare is not affiliated with, endorsed by, or sponsored by any third-party platform mentioned on our website unless explicitly stated.

2. Eligibility

You must be at least 18 years old and capable of entering into a binding contract to use our services. By placing an order, you represent that the information you provide is accurate and that you are authorized to use the payment method submitted.

3. Digital Products & Delivery

All products sold through DesignFlare are digital goods. Upon successful payment confirmation, license credentials, download links, server paths, and setup instructions are delivered electronically to the email address associated with your order. No physical goods are shipped.

Delivery is typically automated and occurs within minutes of payment. You are responsible for providing a valid email address and checking spam, junk, promotions, and updates folders if delivery is delayed.

4. Orders & Payments

Payments are processed securely through Whop and/or other authorized payment processors. We do not store full payment card details on our servers. Prices are displayed at checkout and may be updated at any time; the price shown at the time of purchase applies to your order.

We reserve the right to refuse or cancel orders in cases of suspected fraud, pricing errors, or violation of these Terms.

5. License Grant

Subject to payment and compliance with these Terms and our End User License Agreement (EULA), we grant you a non-exclusive, non-transferable license to use the purchased digital assets as described in the applicable product documentation and EULA. Ownership of all templates, source code, designs, and intellectual property remains with DesignFlare.

6. Acceptable Use

You agree not to:

- Resell, redistribute, sublicense, or share source files, license keys, or download links except as expressly permitted
- Claim our products as your own original work without attribution where required
- Reverse engineer, decompile, or extract assets for the purpose of creating competing template libraries
- Use our products in any unlawful manner or to infringe third-party rights
- Attempt to bypass delivery, licensing, or access controls

7. Refunds & Returns

Refunds are handled in accordance with our Return Policy, incorporated herein by reference. Due to the nature of digital goods, certain limitations may apply once assets have been delivered or accessed.

8. Intellectual Property

All content on <https://designflare.de>, including trademarks, logos, text, graphics, code, and template designs, is the property of DesignFlare or its licensors and is protected by applicable intellectual property laws.

9. Disclaimer of Warranties

Our products and website are provided "as is" and "as available" without warranties of any kind, whether express or implied, including merchantability, fitness for a particular purpose, and non-infringement. We do not guarantee uninterrupted access or error-free operation.

10. Limitation of Liability

To the maximum extent permitted by law, DesignFlare and Ayoub Esadik shall not be liable for any indirect, incidental, special, consequential, or punitive damages, or for loss of profits, data, or business opportunities arising from your use of our products or services. Our total liability for any claim shall not exceed the amount you paid for the specific product giving rise to the claim.

11. Privacy

Your use of our services is also governed by our Privacy Policy, which describes how we collect, use, and protect personal information.

12. Modifications

We may update these Terms at any time. Material changes will be posted on <https://designflare.de> with an updated effective date. Continued use of our services after changes constitutes acceptance of the revised Terms.

13. Governing Law

These Terms are governed by the laws of Morocco, without regard to conflict-of-law principles. Any disputes shall be resolved in the courts of competent jurisdiction in Morocco, unless otherwise required by mandatory consumer protection laws in your country of residence.

14. Contact

For questions regarding these Terms, contact Ayoub Esadik at contact@designflare.de.

Legal & Support Contact

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<https://designflare.de>

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